THE STATE

Versus

MDUDUZI NGWENYA

HIGH COURT OF ZIMBABWE
MUTEVEDZI & NDUNA JJ
BULAWAYO, 30 March 2026

Criminal review judgment

MUTEVEDZI J: The practice of keeping first offenders out of prison and incarcerating them only where it is absolutely unavoidable remains as salutary toady as it ever has been. Mduduzi Ngwenya (the offender) in this case, did not deserve to go to prison. He appeared before the court of a magistrate at Inyathi on charges of Having Sexual Intercourse with a child as defined in section 70(1)(a) of the Criminal Law (Codification and Reform) [*Chapter 9:23*] ["the CODE"]. The allegations were that on a date unknown to the prosecution but during the period between September 2025 and 24 February 2026, he had sexual intercourse with the complainant aged 14 years. The offender and the complainant were in a love relationship. The matter came to light on 25 February 2026 when the offender was found inside the complainant's room. He was later arrested.

[1] At his trial, the offender was convicted after a contested trial. During the presentencing hearing, the prosecution conceded that he is a first offender. On his part, the offender told the court that he is 21 years old; that he is not married and survives on small scale mining realizing about US$250 a month. He further said he had US$50.00 as savings and had 3 goats and 1 ox.

[2] In aggravation, the prosecutor argued that the offender had committed a very serious offence; that he had exploited a vulnerable complainant and introduced her to sexual acts at a young age. It was further stated that the offender abused the trust the complainant's father had reposed on him. In the end, the prosecutor prayed for what he described as 'a deterrent sentence.' The complainant's mother was called to testify. She expressed her disappointment on the offender and prayed for a custodial sentence to deter him from committing similar offences.

[3] In her sentencing judgment, the trial magistrate cited a number of authorities, the majority of which were prior the promulgation of the Criminal Laws Amendment (Protection of Children and Young persons) Act, 2024 ("the Amendment Act") and the Criminal Procedure (Sentencing Guidelines") Regulations S.I. 146 of 2023 ("the sentencing guidelines") both of which introduced significantly new dimensions to the sentencing of offenders convicted of the crime of having sexual intercourse with children.

[4] The trial magistrate concluded that the age difference between the offender and the complainant, seriousness of the offence and that the complainant was a student far outweighed the mitigation. She stated that community service or an order to pay a fine will be a mockery to the administration of justice and would create a bad precedent in the community. In its own words, the court stated that: -

> "Accused's aggravatory factors outweigh the mitigatory factors on the count he is facing and cannot escape severe punishment by this court. Accused deserves sentences that will deter could be offenders. Courts are the vanguards of children's rights. The duty on this court includes handing down appropriate sentences that deter those preying on children to refrain from doing so in order to give the maximum protection according to children by law. (Sic)
> Children, particularly the girl child is by her very nature weak and vulnerable citizen who deserves utmost protection in this society from such vice. The sentencing provision states that one can be sentenced to a fine or be given a community service, however, court is of the strong view that community service or a fine in the circumstances will be a mockery to justice. A fine or community service sentence will create a bad example and precedence in this society also considering the nature of the victim and her standing in the society, the gravity of these offence and the age gap between these two parties." (Sic).

[5] In the end, the offender was sentenced as follows: -

> "24 months imprisonment of which 3 months imprisonment is suspended for 5 years on condition accused does not within that period commit any offence of which having sexual intercourse with a child is an element of which upon conviction is sentenced to imprisonment without the option of a fine.
> The remaining 21 months imprisonment effective"

[6] On one hand, the conviction in this case is unquestionable. Nothing turns on it. I therefore certify it, as being in accordance with real and substantial justice. On the other hand, the sentence is worryingly excessive. I sought the trial magistrate's explanation on what persuaded her to sentence the offender to an effective 21 months imprisonment. She responded as follows: -

> "I have noted the query raised by the Honourable Judge and will respond as follows; I made an error in passing my judgment. I took it that since the offender used to stay at the same house with the victim and he knew she was a child, he was supposed to be protective but he took advantage of the child and engaged in sexual activities. I took that as aggravating and warranted custodial sentence."

[7] From the response, I detect that the trial magistrate over played the question of the age gap between the offender and the complainant. In fact, the trail court must have, because of the age gap, been persuaded to lean towards imposing a non-custodial penalty. That is particularly so, if regard is had to s 70(3) of the CODE which provides as follows: -

> (3) "Where sexual intercourse or an indecent act takes place between—
> (a) children between whom the difference in age is not more than three years; or
> (b) **a child and an adult who is not more than three years older than the child**;
> neither of them shall be charged with sexual intercourse or performing an indecent act with a child unless the Prosecutor-General, after considering a report by a probation officer appointed in terms of the Children's Act [Chapter 5:06], has authorised the charge." (My emphasis).

[8] The provision was aptly interpreted by MUSHURE J in *S* v *Madiro* HH292-25 at p. 4 of the judgment when she said: -

> "If I have understood the amendment correctly, s70 (3) introduces two primary considerations to be taken into account before a person is charged under s70. Both considerations have to do with the ages of both the accused and the complainant. The first consideration is the ages of the accused and complainant where both of them are children. If both are children and the age gap between them is three years or less, then the authority of the Prosecutor General is required to prefer those charges… Reverting to the issue at hand, s70 (3) (b) provides for a process similar to the process under s70 (3) (a) where the offence is committed between a child and an adult who have an age gap of not more than three years. Thus, where for instance the complainant is seventeen and half and the accused is nineteen, the offence, though involving a child and an adult would fall within the remit of s70 (3) (b) by virtue of their age gap. This is a new requirement of our law and the reason why the scrutinising regional magistrate referred the current matter for review."

[9] What is clear is from the above is that the law places emphasis of the age gap between the parties. It is considered needless to criminalise sexual acts between and amongst children whose age differences is less than 3 years. The law equally plays down sexual acts between adults and children where the adult is not more than three years older than the child. In this case, the offender is aged 21 years whilst the complainant is 14 years old. He is therefore barely 4 years outside the protected bracket. It is that 4 years which must have informed the trial court on whether or not to view the age difference as mitigation or aggravation. Clearly, it ought to have been taken in the offender's favour.

[10] I must admit that it was correct for the trial magistrate to consider that the offender abused the trust reposed on him by the complainant's parents. Instead of acting and behaving as he protector, he turned and abused her. But that on its own, could not have overshadowed that this was the offender's first brush with the law which entitled him to

be treated leniently and be spared effective imprisonment. He remarks of this Court in *S* v *Mativenga* HH46-18 are apposite. It was held that: -

> "The fact that the accused is a first offender must weigh heavily in his favour despite the aggravating factors which include the age disparity between him and the complainant."

[11] Apart from the above issues, there are other considerations that further make the sentence imposed out of range with sentences normally imposed on similarly placed offenders. After sentencing the offender to 24 months imprisonment, the trial magistrate only suspended 3 months imprisonment. The length of the suspended term does not achieve the intended purpose that it serves a future deterrent to the offender. Suspending a mere 3 months from 2 years appears to me to have been perfunctory because it does not bear any comparable relationship to the remaining 21 months effective imprisonment.

[12] In addition, it is trite that where a court settles for an effective sentence of imprisonment which is 24 months or below, it is required as a matter of principle, to consider the suitability or otherwise of community service as an option. See the cases of *S* v *Antonio & Ors* 1998 (2) ZRL 64 (H); *S* v *Mbizvo & Ors* HB 258-16; *S* v *Mpofu* HB 45-17. In this matter the trial magistrate gave her reasons justifying her refusal to impose community service. Those reasons were unfortunately at variance with the reality that existed. She said imposing community service would make a mockery of the administration of justice and set a bad precedent I the community. In *S* v *Doubt Dube* HB33/26 this Court commented as follows:

> "It is as much a misdirection not to consider community service in those circumstances as it is to perfunctorily state that it has been considered but deemed inappropriate. For a court not to impose community service, clear and cogent reasons must be given. The often-sweeping statement that community service will trivialize the offence may not be good enough because a crime that deserves punishment of 24 months or less is more often than not one which is on the lower end of the scale of seriousness…
> In addition, the law is that, where a statute provides for a sentence of a fine, with the alternative of imprisonment, a court must first give serious consideration to the imposition of the fine and reserve imprisonment for the most serious infractions or for repeat offenders. See *S* v *Chawanda* 1996 (2) ZLR 8 (H); and *S* v *Zuva* 2014(1) ZLR 15 (H) for that proposition."

[13] Those remarks ring true in the present case where no serious thought was given to forms of non-custodial punishments. The trial court had already decided, by imposing 24 months imprisonment, that the offence was not a serious one. It becomes paradoxical to then turn around and argue that sentences that are intended for non-serious crimes will be

a ‘mockery’ to the administration of justice if imposed. The offender is a first timer and is youthful. The sentence imposed does not therefore accord with the criteria outlined above. It cannot be deemed as being in accordance with real and substantial justice. That opens it up for interference.

[14] In the result, I direct as follows: -

i. The sentence imposed by the court *a quo* be and is hereby set aside
ii. The matter is remitted to the trial magistrate for him/her to reconsider the imposition of a non-custodial sentence taking into consideration the guidelines stated in this judgment
iii. The time which the offender may have already spend in prison shall be factored into the new sentence that will be imposed.
iv. The registrar of High Court is directed to issue a warrant for the immediate liberation of the offender

MUTEVEDZI J……

NDUNA J…….. I agree